



Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL
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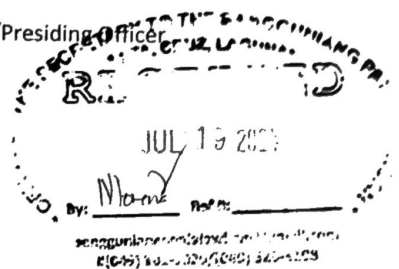


**ORDINANCE APPROVED BY THE CITY COUNCIL OF BIÑAN, LAGUNA IN ITS REGULAR SESSION
HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY HALL ANNEX BUILDING,
BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED JULY 2, 2024.**

PRESENT:

Hon. ANGELO B. ALONTE
Hon. LIBUNERO O. ALATIIT
Hon. JONALINA R. REYES
Hon. ROMMEL R. DICDICAN
Hon. FLAVIANO D. PECAÑA, JR.
Hon. CHRISTOPHER A. ALBA
Hon. JAYSON A. SOUZA
Hon. VICTOR L. CARIÑO
Hon. ELMARIO B. DIMARANAN
Hon. RAFAEL L. CARDEÑO, JR.
Hon. ELVIS L. BEDIA
Hon. JOSE FRANCISCO RUBEN P. YATCO
Hon. GEMINIANO B. CATALON
Hon. ALONZO KYNE S. GARCIA
GERONIMO D. ROMANTIGUE, MDMG

- City Vice Mayor/Presiding Officer
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- ABC-Federation President
- SK-Federation President
- City Council Secretary



GUESTS:

PSSG. Razel Condes
PAT. Gilberto E. Llovido, Jr.
PSSG. Kenneth Villahermosa
PEMS Alan L. Bogñalbal
Mr. Jaime M. Salandanan
Legislative Staff of the City Government of Biñan

- Member of the Biñan-CCPS
- Member of the Biñan-CCPS
- Member of the Biñan-CCPS
- Member of the Biñan-CCPS
- Former Councilor

ABSENT:

NONE

CITY ORDINANCE NO.10- (2024)

**AN ORDINANCE ADAPTING A DIGITALIZED SYSTEM OF APPREHENSION, AND ESTABLISHING A
SYSTEM OF INTERCONNECTIVITY BETWEEN AND AMONG GOVERNMENT INSTRUMENTALITIES
INVOLVED IN TRANSPORT AND TRAFFIC MANAGEMENT AND ENFORCEMENT**

Author: Hon Jayson A. Souza
Chairman, Committee on Transportation

WHEREAS, it is a declared policy, as embodied in Republic Act No. 8792 otherwise known as the Electronic Commerce Act of 2000, that the State recognizes the vital role of information and communications technology (ICT) in nation-building; the need to create an information-friendly environment which supports and ensures the availability, diversity and affordability of ICT products and services; the primary responsibility of the private sector in contributing investments and services in ICT; its obligation to facilitate the transfer and promotion of technology; to ensure network security, connectivity and neutrality of technology for the national

benefit; and the need to marshal, organize and deploy national information infrastructures, comprising in both communications network and strategic information services, services, including their interconnection to the global information networks, with the necessary and appropriate legal, financial, diplomatic and technical framework, systems and facilities;

WHEREAS, Republic Act No. 8792 (The "Electronic Commerce Act"), provides that an electronic online network facilitates the open, speedy, and efficient electronic online transmission, conveyance, and use of electronic documents amongst all government departments, agencies, bureaus, offices, up to the division level, City offices, government owned and controlled corporations, local government units, other public instrumentalities, universities, colleges and other schools, and universal access to the general public;

WHEREAS, Republic Act No. 7160 or the "Local Government Code of 1991" provides that LGUs, within their respective territorial jurisdictions, shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare, including the power to approve ordinances through its local legislative body regulate traffic on all streets and bridges, prohibit the putting up of encroachments or obstacles thereon, and, when necessary in the interest of public welfare, authorize the removal of encroachments and illegal constructions in public places;

WHEREAS, the City of Bifan recognizes the need to utilize electronic means in the exchange of information and the delivery of core public services as embodied in Republic Act No. 8792, and acknowledges that the utilization of such will translate to reduced transaction costs and risks, and result to a more effective implementation of various land transportation laws, and rules and regulations;

WHEREAS, Section 23 of Republic Act No. 4136, as amended by Republic Act No. 10930 (R.A. 10930), expressly provides that, "...local government units (LGUS), the Metropolitan Manila Development Authority (MMDA) or other agencies lawfully issuing traffic violation shall report within reasonable time, to be determined in the implementing rules and regulations (IRR), the details of the traffic violation to the LTO, which shall serve as the repository of all traffic violation records";

WHEREAS, Section 23 of the IRR of R.A. 10930 provides that LGUs, the MMDA or other agencies lawfully issuing traffic violation shall upload the apprehension report online to the LTO facility to be developed for this purpose;

WHEREAS, Section 23 of the IRR of R.A. 10930 also provides that driver's licenses of violators included in the apprehension reports submitted by the LGUS shall be placed on alarm in the Land Transportation Office (LTO) Law Enforcement and Traffic Adjudication System within twenty-four (24) hours from the receipt of the report, and that no demerit points shall be incurred by and recorded against the driver-violator until the submission of the LGU of a complete updated report on the apprehension cases indicating whether such apprehension was admitted, uncontested, or affirmed or dismissed on adjudication which shall be submitted not later than three (3) working days from the lapse of the prescribed contest period of the apprehending agency.

WHEREAS, the same IRR has institutionalized the Point System in the Land Transportation Office, which is now being used to assess the fitness and eligibility of driver applicants for their desired license transactions, and identify, deter, and penalize repeat offenders of traffic laws and ordinances, as well as the LTO Point Registry where demerit points incurred by every driver is being recorded, stored, and accessed for convenient monitoring;

WHEREAS, LTO is now implementing its own enterprise-wide Land Transportation and Management System (LTMS), which is a web-based core system applications deployed in its exclusively on-premise private cloud in the implementation of paperless and non-face-to-face based transactions and delivery of its services to its clients, to enhance agency's efficiency, improving client-focused services, promoting transparency and accountability in its transactions, and increasing inter-agency coordination, cooperation and public partnership.

WHEREAS, in order to effectively comply with the requirements of R.A. 10930 and its IRR, to fulfill LTO's mandate to serve as the repository of all traffic violation records, and to conform

to the national government's direction to digitalize and to make use of technology to ensure the efficiency and reliability in the performance of public functions and delivery of services to the public, the City of Biñan desires to make use of technology in the implementation and enforcement of its Ordinances, and adapt a system therefor that is similar to the Single Ticketing System and the system of interconnectivity established by the MMDA and LGUS in Metro Manila under the Metro Manila Traffic Code of 2023, including the use of technology in apprehending violators.

NOW THEREFORE, be it ORDAINED, as it is hereby ORDAINED by the **BE IT ENACTED** by the Sangguniang Panlungsod of Biñan, in a session duly assembled, the following:

SECTION 1. Title

This Ordinance shall be known as the "**Digitalized Apprehension System of the City of Biñan.**"

SECTION 2. Declaration of Policy

It is the policy of the City to have an efficient, effective, and electronic system to enforce its Ordinances, to protect the general welfare of the people, and to improve public safety.

SECTION 3. Implementation

1. The City Government on its own or through a Joint Venture or Service Agreement shall adapt a digitalized system of apprehending violators of any Ordinance, which includes acquiring computers, handheld devices, or other similar gadgets, and establishing a system of interconnectivity between and among government instrumentalities involved in transport and traffic management and enforcement, including, but not limited to, the LTO and other LGUs.
2. Without prejudice to the implementation of the No Contact Apprehension Program (NoCAP) of the City of Biñan, only authorized or deputized personnel shall apprehend violators of ordinances and issue citation tickets. Citation tickets may be issued either by manually filling out an Ordinance Violation Receipt or by using a handheld device.
3. Within 10 working days from the issuance of the citation ticket, the person against whom it was issued may settle or pay the imposed fine, or file a protest or appeal in accordance with existing Ordinances.
4. After the lapse to the-day period, the cited violation shall become incontestable if the person against whom the citation ticket was issued fails to settle the imposed fine, or to file a protest or appeal. For traffic-related violations, the driver's license of the violator or the license plate or registration of the subject motor vehicle shall be endorsed to the Land Transportation Office (LTO) for its inclusion to the Alarm's List, which shall operate as a request for the non-renewal of the driver's license or motor vehicle's registration until the fines are fully settled.
5. For every traffic violation committed by a driver, a corresponding demerit point shall be recorded against the driver's record in the Law Enforcement and Traffic Adjudication System (LETS) of the LTMS in accordance with provisions of the Implementing Rules and Regulations (IRR) of Republic Act No. 10930 (RA 10930). For NoCAP apprehension, the registered vehicle owner is presumed to be the driver. For violations settled prior to the lapse of the contest period, only the demerit point shall be tagged in the LTO database. The demerit points attribution of the traffic violations shall be in accordance with the Violation- Demerit Point Schedule under the IRR of RA 10930. Traffic violations not included in the schedule, such as, but not limited to, number coding schemes and truck bans, shall be assigned a demerit point equivalent to light violation.
6. The City may recommend the suspension, revocation, or cancellation of a driver's license or registration of motor vehicle relative to Republic Act No. 4136 and/or RA 10930.
7. The City shall cause the lifting of an alarm after settlement of the fine or when the citation is reversed upon contest or appeal. However, the LTO is not proscribed from lifting alarms in cases with justifiable circumstances and with notice to the City.
8. The City, through the Mayor, is hereby authorized to enter:
 - a. into a Memorandum of Agreement, data privacy agreement, or other similar or related agreement with the LTO, other government instrumentalities, and third-party IT

providers for purposes of interconnectivity and/or compliance with the Data Privacy Act of 2012; and

b. into agreements with third-party institutions or entities for purposes of establishing modes of payment or settlement of violations other than physical payment, such as with established banks, Maya, GCash, Bayad Center or other online platforms.

SECTION 4. Digitalized Apprehension System Trust Fund

The fines collected by the City using the Digitalized Apprehension System shall be placed under a Trust Fund, which shall be separate and distinct from the General Fund of the City and all other Trust Funds made for other purposes. Such Trust Fund shall have its own bank account to which the City Treasurer has access to, and shall be used for any costs or expenses pertaining to the Digitalized Apprehension System, system of interconnectivity, and other purposes necessarily related to the implementation of this Ordinance.

SECTION 5. Implementing Rules and Regulations

The City Legal Office and the City Development Authority may, if necessary, formulate the applicable implementing rules and regulations of this Ordinance, for approval by the Sangguniang Panlungsod.

SECTION 6. Repealing Clause

All Ordinances, Resolutions, Executive Orders, and administrative regulations or parts thereof that are entirely in conflict or inconsistent with any provision of this Ordinance are hereby repealed or modified accordingly.

SECTION 7. Separability Clause

If for any reason, any part of this Ordinance or the application thereof to a specific person or circumstance is held invalid, the other parts or provisions hereof which are not affected thereby shall remain valid and in full force and effect.

SECTION 8. Effectivity Clause

This Ordinance shall take effect fifteen (15) days after its publication at least once in a local newspaper of general circulation.

SECTION 9. Dissemination

Let copies of this Ordinance be sent to the Office of the City Mayor and to all government departments, agencies, and offices concerned.

UNANIMOUSLY APPROVED.

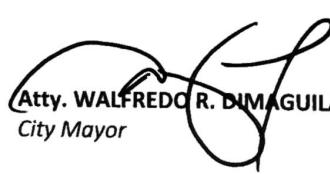
CERTIFIED CORRECT:


GERONIMO D. ROMANTIGUE, MDMG.
City Council Secretary

ATTESTED:


Hon. ANGELO B. ALONTE
City Vice-Mayor/Presiding Officer

APPROVED:


Atty. WALFREDO R. DIMAGUILA, JR.
City Mayor